

October 14, 2025: Status Hearing
25JU04261
In The Matter of Al-mira Davis

AAD Yasmin Wadia
Judge Michelle C. Rini
Alquan Davis

July 26, 2026

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AAD Yasmin Wadia: Thank you, Your Honor. Good morning. We're here in the batter of Elmira Davis, Case Number 25JU04261. Today's date is October 14, 2025. This is the time and date set for a status hearing in this matter.

AAD Yasmin Wadia: Yasmin Wadia on behalf of Attorney General's Office, on behalf of the Oregon Department of Human Services court worker Emily Marquand, PS worker Ashley Crafton, and permanency case worker David Milne.

AAD Yasmin Wadia: We are joined this morning by Elmira, who is present in the courtroom, represented by counsel Ryan Lotzke. Mother Ashley Penn is not present and does not currently have counsel record. Father Alquan Davis is present, represented by counsel Ivana Moles. On behalf of the CASA program this morning, CASA Supervisor Alta Murphy.

Judge Michelle Rini: Okay, so I'll note that mom still has not been served.

AAD Yasmin Wadia: That is correct, Your Honor. The agency is in email communication with mother, and I received a notification this morning that mother has attempted to file in this case. So at this point in time, we are proceeding as if she is proceeding pro se. However, from the agency's perspective, she is evading service. We are unable to personally serve. So we are continuing our efforts and hope to have further updates at the CJ date.

Judge Michelle Rini: Okay, so let me just look. Ms. Moles, how is your client proceeding?

AAD Yasmin Wadia: Your Honor, we have come up with some amended language with the state of family approach.

Judge Michelle Rini: You may. Let me pull up the right form of order then.

AAD Yasmin Wadia: your honor would you like him to stand uh if no it's hard to

Judge Michelle Rini: get up and down with the chains on

Alquan Davis: it hurts more because i have two ingrown hernias on both sides so i would rather stand

Judge Michelle Rini: oh do you want to stand whatever's more comfortable for you right now go ahead i just know sometimes it's to get up and down with the chains on people go okay that's not the most okay and we are working off the original petition is that correct yes your honor all right so dad i'm pulling that

up here and i see that i've now been handed what's called an admission sheet the very name of that tells me you guys have worked something out now you have an absolute right to come to court today and say i want to leave it on for my trial date and then the state has to prove more likely true than not true their allegations okay it's just a preponderance of the evidence standard it's not a criminal case now when your attorney submits language then your language becomes the official language of the case file but then i don't hear testimony and evidence right if i accept your language instead of theirs we don't have a trial unless you guys are are you pending an allegation or anything small all right So, what this would now say, all right, I see the rewrite, okay? So, let's put the new language in here that D would now say the father is charged with criminal mistreatment, assault, and strangulation with the child as the name victim and is currently incarcerated, interfering with his ability to parent.

Judge Michelle Rini: And E would now say, father needs the assistance of the agency to address the breakdown of the parent-child relationship resulting in violence in the home, without which child is at risk of harm. With those changes, with the rewriting of the language, is that correct how you wish to resolve this case today?

Alquan Davis: Yes.

Judge Michelle Rini: Okay, so I will then, and you read this before you signed it? Or had it read to you one or the other? Is that in fact your signature on the paperwork?

Alquan Davis: Yes, it is.

Judge Michelle Rini: Now, and do you also understand that I could order you to participate in services, fancy way of saying classes or counseling, that address those two. I could not say, hey, go do a drug and alcohol assessment because neither one of these have any of those allegations. Do you understand that?

Judge Michelle Rini: Yes.

Judge Michelle Rini: Unless there's something you guys don't mind. All right, I'm just general ities here. And do you understand you have roughly a year to get services done under federal law?

Alquan Davis: I was trying to get it to compare.

Judge Michelle Rini: Oh, yeah, I'm just saying.

Alquan Davis: Yes.

Judge Michelle Rini: You understand the outer limits. I don't want people to take a whole year.

Alquan Davis: It doesn't matter. I will do it now.

Judge Michelle Rini: Okay.

Judge Michelle Rini: So I'll note that dad was summonsed and appeared, that on today's date, I'm noting the admissions made by, come on, by One on the record?

Judge Michelle Rini: All right. I'm just general ities here. And you understand?

Judge Michelle Rini: Father.

Judge Michelle Rini: And what I will do then is I will, so we have our existing trial date.

Judge Michelle Rini: Have been accepted by the court.

Judge Michelle Rini: On today's date, I'm noting the admissions made by the father contained in the form dated today's date, yep, October 14, have been accepted by the court.

Judge Michelle Rini: and I'll sign this.

Judge Michelle Rini: And what I will do then is I will, so we have our existing trial date. So it'll be trial for mom, disposition for father, but i will also note miss moles would you like me uh do the order waiving his appearance if he doesn't want to come to this next one yes sir dad need not appear if father well i should say if i say that, I should say that. If he signs an action agreement or is in agreement or is in agreement with the services. If you don't agree with the services, you got to come here to complain. If you're good with them then we don't need you to appear if you just want to appear just make sure m s moles knows so that we can arrange transport for you over yes okay all right is there anything else we need to address um your honor just for clear and obviously legally the child is continued in the temporary legal custody and substitute care

AAD Yasmin Wadia: thank you your honor um as court and counsel are there is a companion criminal case in case number 25CR50131.

AAD Yasmin Wadia: On an order signed by Judge Boucher on September 23, 2025, Judge Boucher states that no contact with victim at all. Judge Reney to address any modification regarding victim

contact and lists this case number and then states no other judge at this point in time the agency is respectfully requesting that contact be per dhs

Judge Michelle Rini: okay at this point in time if you're asking me to modify a criminal order you have to go through the process there is a specific process to move to have that modified because it has to the notice to the criminal case as well thank you your honor i apologize for that that's okay there's a new business process um it's called competing orders and it might be problematic because she is the direct listed victim but it can still happen but you got to go through the right process okay understood thank you all right mr lotsky i saw you stand i assume you want to tell me something yes i think you just answered my question but for what it's worth daughter is requesting, child requesting just a temporary allowance of contact. She's really torn up about this and would like to at least have something to say with father. If able, she would love to have a hug with father.

Judge Michelle Rini: That's not going to happen right now with his custody status. It can't. That's against those rules. Now, what I would say, which would be a start, is if the young lady wanted to write some letters they could be held until now her contacting him is not a problem him contacting her is a problem if she wants to write some letters and they can kind of be held until we work out those details that would be appropriate yes okay all right um anyone have any reason to believe the indian child welfare act federal or state versions apply to this family

Judge Michelle Rini: no your honor all right so mom again attempted to file some motion to appear telephonically which is not allowed for these hearings. We have court order. And we all know why she wants to.

Judge Michelle Rini: So at this point in time, I will sign, I will deny that order. Even though she didn't file it properly, we'll deal with that because she is pro se. Okay, that'd be the order. Thank you, everyone.